

Jakir v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 15 March 2023 · Writ-C No. 7339 of 2023 · **Disposed; recovery notice withdrawn, fresh order under Code**

HEADNOTE

Writ challenging a provisional assessment dated 05.07.2022 and a recovery notice dated 26.12.2022 disposed of after the Electricity Department withdrew the recovery notice and stated that a fresh order would be passed after hearing the petitioner. The Court left the Department at liberty to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005, without construing any clause or deciding the assessment.

FACTUAL SUMMARY

Jakir filed a writ in the Allahabad High Court against a provisional assessment order dated 5 July 2022 and a recovery notice dated 26 December 2022 of the Electricity Department. On 2 March 2023 counsel for the Department took a week to obtain instructions. On 15 March 2023 counsel stated that the recovery notice had been withdrawn and that a fresh order would follow after the petitioner was heard. The Division Bench disposed of the petition on that statement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh order after withdrawal of recovery notice

HOLDING

Once the Electricity Department withdraws the impugned recovery notice and states that a fresh order will be passed after hearing the consumer, the writ challenging that notice and the provisional assessment is disposed of. The Department is left at liberty to pass the fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2

FLAG No clause number is stated; the order refers only to the procedure prescribed under the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

fresh-order-strictly-per-supply-code The writ was disposed of on the Department's statement that the recovery notice stood withdrawn and that a fresh order would be passed after hearing, with liberty to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. The Court identified no clause and did not rule on the assessment. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE PROVISIONAL ASSESSMENT DATED 05.07.2022, AND THE CONTENT OF THE FRESH ORDER

The Court recorded withdrawal of the recovery notice and did not examine the assessment. What the fresh order should contain was left to the Electricity Department, subject to a hearing and the Supply Code procedure. ¶ 2